

25STLC05378 25STLC05378

County: los-angeles

Division: Civil Law and Motion

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TENTATIVE RULING:

Plaintiff Pacific Rejuvenation Medical's Motion to Strike Defendant Lourvey Bourdan's Answer is denied.

Analysis:

On July 14, 2025, Plaintiff Pacific Rejuvenation Medical ("Plaintiff") filed this action against Defendant Lourvey Sahana Bourdan ("Defendant"). Following Defendant's failure to file a responsive pleading, the Court entered their default on September 9, 2025. On February 5, 2026, the Court granted Defendant's Motion to Vacate Entry of Default. (Minute Orders, 12/31/25 and 02/05/26.) Defendant filed an Answer on March 12, 2026.

On April 15, 2026, Plaintiff filed the instant Motion to Strike Defendant Lourvey Bourdan's Answer. Plaintiff served Defendant with the Motion on the same day. No opposition has been filed to date.

Discussion

The Motion moves pursuant to Code of Civil Procedure sections 435, 436 to strike Defendant's Answer on the grounds that it was not filed in conformity with the laws of this state. Specifically, that the Answer (1) fails to admit, deny, or state a lack of information as to each material allegation as required by Code of Civil Procedure section 431.30, subdivision (d); (2) includes conclusory boilerplate affirmative defenses unsupported by facts; and (3) is not on numbered pleading paper with proper caption and line formatting as required by Cal. Rules of Court, rules 2.108 and 2.111. (Notice of Motion, p. 2:2-17.)

Motions to strike in the Limited Civil Court may only challenge pleadings on the basis that "the damages or relief sought are not supported by the allegations of the complaint." (Code of Civ. Proc., § 92, subd. (d).) By its own notice, the instant Motion to Strike does not pertain to whether the damages or relief sought are supported by the allegations. Additionally, Plaintiff misplaces its reliance on Code of Civil Procedure section 431.30(d) regarding whether a general denial is sufficient or must be made positively. Section 431.30, subdivision (d) states that if a complaint is subject to Article 2 (commencing with Section 90) of Chapter 5.1 of Title 1 of Part 1 – which pertains to Economic Litigation for Limited Civil Cases such as the instant action – a general denial is sufficient. (Code Civ. Proc., §431.30(d).) A general denial is sufficient in limited civil even if the complaint is verified. (See *id.* (setting forth two independent bases allowing for a general denial).) The only exception to this rule within the Limited Civil Court, where a positive answer may nonetheless be required, is for a claim assigned to a third party for collection where the complaint is verified. (Code Civ. Proc., § 431.30, subd. (d).) That exception does not apply here.

Finally, even if the Court were to consider the request to strike the affirmative defenses as boilerplate and conclusory permissible under Code of Civil Procedure section 92 because it pertains to their factual sufficiency, the Motion provides no supporting legal authority for this argument. (Motion, p. 2:8-14.) Nor does the Motion identify the particular affirmative defenses to which this argument is directed. (Ibid.) Rather, Plaintiff presents the entire argument in three short sentences, without citation to authority, the Answer, or any analysis. Contrary to Plaintiff's argument, the defenses identified in the Answer are each supported by a brief assertion of fact, tailored to this case.

Therefore, the Court finds Plaintiff has not demonstrated a basis to strike any part of Defendant Lourvey Bourdan's Answer.

Conclusion

Plaintiff Pacific Rejuvenation Medical's Motion to Strike Defendant Lourvey Bourdan's Answer is denied.

Moving Party to give notice.